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No. 25-0648

IN THE SUPREME COURT OF TEXAS

HANNAH R. TANNER

Petitioner

v.

TEXAS STATE UNIVERSITY

Respondent

On Petition for Review from the
Third Court of Appeals, Austin, Texas,
Cause No. 03-21-00131-CV

BRIEF ON THE MERITS

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STATEMENT REGARDING ORAL ARGUMENT

The Texas Supreme Court previously identified a novel issue, and remanded the case to the Third Court of Appeals for determination of that issue. Petitioner believes that oral argument would assist the Court in analyzing that legal issue and guiding Texas Courts of Appeals with respect to its application.

STATEMENT OF THE CASE

NATURE OF THE CASE:

This is the second time this case has reached this Court.

On May 3, 2024, the Court held that compliance with the statute of limitations is a jurisdictional prerequisite to bringing a claim against a government entity under the Texas Tort Claims Act (Tex. Civ. Prac. & Rem. Code §101.106). *See Texas State University v. Tanner,* 689 S.W.3d 292, 302 (Tex. 2024).

The Court further held that exercising diligence in serving the citation is required in order to comply with the statutory prerequisite of bringing suit within the statute of limitations.

However, this Court could not decide, based on the briefing and record before it, whether timely service on the government's employee is sufficient to constitute service on the government employer. The Court remanded the case to the Third Court of Appeals to determine the legal issue of whether "Tanner's service on [employee] Scott excuses her from the duty to serve the [employer] University, diligently or otherwise." *Id.* at 304.

The Court also "decline[d] to resolve in the first instance whether or how the principles of *Bailey*[1] affect this case." *Id*. at 303.

[1] *University of Texas Health Science Center at San Antonio v. Bailey*, 332 S.W.3d 395 (Tex. 2011).

DISPOSITION ON REMAND BY COURT OF APPEALS

On remand, the Third Court of Appeals requested supplemental briefing on two questions: (1) Under Section §101.106(f) of the Texas Tort Claims Act, did Petitioner Hannah R. Tanner's service on defendant Dakota Scott satisfy her obligation to serve Scott's employer, appellee Texas State University; and if so (2) did Tanner timely serve Scott?

In its majority opinion, the Third Court of Appeals distinguished the dismissal of claims against individual government employees depending on whether the dismissal was requested by the government employee under §101.106(f), or whether that dismissal was requested by the government employer under §101.106(e). *Tanner v. Tex. State Univ.*, 722 S.W.3d 156 (Tex. App.—Austin 2025, pet. filed)

The Court of Appeals concluded that, because the University had filed a motion to dismiss under §101.106(e), this Court's holding in *Bailey* was inapplicable, the University had not been substituted into the case, and service on Scott was not effectively service on the University. The Court of Appeals affirmed the trial court's grant of the University's plea to the jurisdiction. *Id.* The Court did not reach the issue of whether service on Scott was timely. *Id*. at 167.

In a dissent, Justice Crump concluded that, when the University filed a motion to dismiss under §101.106(e), it voluntarily substituted

itself for its employee. *Id.* at 167-68 (Crump, J., dissenting). Accordingly, no additional substitution was necessary to make this situation analogous to a §101.106(f) dismissal, and service on the employee was sufficient to achieve service on the University—without the requirement for separate service on the University.

Petitioner filed her Petition for Review on August 27, 2025. On February 27, 2026, this Court requested briefing on the merits.

ISSUES PRESENTED

ISSUE 1: Under the facts of this case, did Tanner's service on government employee, Dakota Scott, satisfy her obligation to serve Scott's government employer, Texas State University?

Sub-Issue: In *Bailey*, this Court held that a government employer could not rely on a statute of limitations defense when the government employee waited until after limitations expired to file a motion to dismiss under §101.106(f), because a suit against a government employee for actions taken in the course and scope of his employment was, from its inception, a suit against the government. *Bailey*, 332 S.W.3d at 401-02.

Should the result be different in this case because the motion to dismiss the government employee was filed by the employer under §101.106(e), instead of being filed by the employee under §101.106(f)?

Sub-Issue: Can a government employer, despite having actual notice of the lawsuit against its employee, delay filing a motion to dismiss under §101.106(e) until after the statute of limitations runs, thereby preventing the employee plaintiff from bringing suit against the government employer?

ISSUE 2: Did Tanner raise a fact question that she exercised diligence in serving Scott?

The recognized purpose behind §101.106 is to ensure the expedient dismissal of government employees, by requiring a plaintiff to make an irrevocable election between suing an employee in his individual capacity or suing the government employer.

Did Tanner act as a reasonably prudent person, and in compliance with the purpose of §101.106, when (1) she served the University System first, in case Scott was acting in the course and

scope of his employment, (2) waited to serve Scott until it was unclear whether he was acting in the course and scope of his government employment, and (3) served the University only when Tanner had no other available avenue to make the University appear in the case?

RECORD

The record on appeal consists of a one-volume Clerk's Record, and two one-volume Supplemental Clerk's records. Cites to the Clerk's Record will be by page number as "CR ___." Cites to the Supplemental Clerk's Record created on April 23, 2021 will be by page number as "1 SCR ___." Cites to the Supplemental Clerk's Record created on March 6, 2025 will be by page number as "2 SCR ___."

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vs.

TEXAS STATE UNIVERSITY

Respondent

On Petition for Review from the
Third Court of Appeals, Austin, Texas,
Cause No. 03-21-00131-CV

BRIEF ON THE MERITS

STATEMENT OF FACTS

I. The University's appearance in the underlying lawsuit.

The facts of this case are set forth at length in the opinions issued by this Court and the Third Court of Appeals. Petitioner Hannah Tanner would remind the Court of only a few relevant facts and dates.

First, the University was notified of this incident the day after it happened. CR 78-81. University Staff composed an email describing the event, and a "Texas State University-San Marcos Supervisor's Report of Incident, Injury or Illness" was created the same day. CR 78-80.

Next, when Tanner originally filed suit, she named three potential defendants, Texas State University ("University"), Texas State University System ("the System"), and Dakota Scott. CR 7. At that time, Tanner did not know who employed Scott or whether his employer would dispute that Scott was acting in the course and scope of his employment when he injured Tanner while driving a golf cart after hours (approximately 7:45 pm) on the way to a football game. 1 SCR 5; CR 81.

Tanner did not bring suit against Scott until, two years after it answered the lawsuit, the System asserted that Scott was not its employee. *See* 2 SCR 21, 56; 2 SCR 25 (System's 08/30/2018 Brief in Support of Plea to

the Jurisdiction) (claiming that System is not Scott's employer). The System did not reveal who Scott's employer was or acknowledge whether or not Scott was acting in the course and scope of his employment.[2] 2 SCR 25.

Approximately two weeks after Tanner learned that she had not, in fact, filed suit against Scott's employer, she completed the act of bringing suit against Scott by serving citation on him. 2 SCR 56. Scott answered the lawsuit by filing an Original Answer in which he reported that he was "represented by and through the Office of the Attorney General of the State of Texas, and the undersigned Assistant Attorney General," Lisa Cubriel. 2 SCR 57. Ms. Cubriel signed the Answer and the Certificate of Service on behalf of the "Assistant Attorney General." 2 SCR 60, 61.

Scott's Original Answer also included a section titled "Texas Tort Claims Act" in which Ms. Cubriel invoked the TTCA and acknowledged that "at the time of the incident. … Scott was an employee of Texas State University." 2 SCR 58. Ms. Cubriel even acknowledged the University's potential liability under the TTCA when she stated that "Scott expressly

[2] The Court has not raised, so Tanner has not addressed, the equally compelling argument that service on the System within the statute of limitations could likewise be considered timely service on the University.

reserves the right to fully assert all limitations, exemption and exclusions provided by the Texas Tort Claims Act." Of course, the limitations, exemptions, and exclusions of the TTCA only apply to government entities. 1 SCR 65.

Ms. Cubriel filed a motion for summary judgment on behalf of Scott, in which she asserted that Tanner had delayed in serving citation on Scott in the two years in which the System sought first a transfer of venue and then a dismissal. According to Ms. Cubriel, Tanner's failure to serve Scott individual during that time frame meant that Tanner had not formally "brought suit" against Scott within the applicable statute of limitations. 2 CR 62. The trial court denied that motion but did ultimately dismiss Scott from the case in June 2020. CR 53-54; 1SCR 91. Four months later, on October 2, 2020, after securing dismissal of the System (because it was not Scott's employer) and Scott (because his actual employer, the University, was the proper defendant), Ms. Cubriel filed a plea to the jurisdiction and motion for summary judgment on behalf of the University, in which she made that same statute of limitations argument on behalf of the University that she had previously made on behalf of Scott. CR 20. This time, Ms. Cubriel made the additional argument that failure to serve the University

was a failure to satisfy a statutory prerequisite to bringing a claim under the TTCA against a government entity. CR 20; TEX. CIV. PRAC. & REM. CODE §311.034.

The trial court denied the Plea to the Jurisdiction, and the Third Court of Appeals reversed. This Court reversed the judgment of the Court of Appeals, holding that compliance with TEX. CIV. PRAC. & REM. CODE §16.003's statute of limitations was a statutory prerequisite to bringing a claim under the TTCA. The Court remanded the case to the Third Court of Appeals to address a legal issue that had not been fully briefed by the parties, regarding whether that statutory prerequisite had been satisfied by Tanner's service on Scott. *Tanner*, 689 S.W.3d at 303-04.

II. The 2023 Texas Supreme Court Opinion

At the court of appeals and ultimately in this Court, the University argued that its plea to the jurisdiction should be granted because Tanner had failed to comply with a statutory prerequisite to maintaining a suit against a government entity under the Tort Claims Act, by failing to bring suit against the University within the statute of limitations found in CPRC §16.003. *See* CPRC §311.034 (requiring that all statutory prerequisites be met in a suit against a government defendant). Relying on *Chatha*, Tanner responded that

the only statutory prerequisites which were incorporated by §311.034 are specific prerequisites codified in the same statute that contains the principal waiver of immunity—in this case, the Tort Claims Act. *See Prairie View A&M University v. Chatha*, 381 S.W.3d 500, 512 (Tex. 2012) ("to fall within the ambit of section 311.034, a prerequisite must be found in the relevant statutory language").

This Court agreed with the University and held that compliance with §16.003's statute of limitations is a statutory prerequisite to maintaining a claim under the TTCA. *Tanner*, 689 S.W.3d at 300-02. The Court also concluded that, in order to satisfy that statutory prerequisite, it was necessary for a plaintiff to not only file a lawsuit within the applicable statute of limitations, but to also exercise diligence in serving that citation. *Id*. at 299-300.

However, the Court also noted that a "potentially dispositive legal question" was presented by Tanner's argument that "service on Scott effectively *was* service on the University because of Scott's motion to substitute the University under §101.106(f) of the Tort Claims Act." *Id*. at 303 (emphasis in original). The Court agreed that, if that was true, then the University could not maintain a statute of limitations defense if Tanner had

timely brought suit against Scott.

This Court acknowledged that Tanner relied heavily on the Court's holding in *Bailey* to support her argument that the University could not rely on a statute of limitations defense. Tanner reasoned that the University, like the employer in *Bailey*, could not assert limitations because, under *Bailey*, the University had been in the case "all along." *Id.* But the Court distinguished *Bailey* because the motion to dismiss in *Bailey* was filed by the employee under §101.106(f), and the motion to dismiss in this case was filed by the employer under §101.106(e). *Id.* On remand, the Third Court of Appeals also relied on that distinction and held that the University could not be "substituted" into the lawsuit in the place of Scott, because, unlike §101.106(f) which specifically provided for substitution, the section at issue here (§101.106(e)) does not contain language regarding "substitution" of the University for its employee.[3] *Tanner*, 722 S.W.3d at 165-67.

[3] This Court and the court of appeals also alleged that another important component of *Bailey* is that the plaintiffs in *Bailey* did not know that the doctor was employed by the government when the suit was filed, while Tanner knew from the outset that Scott could be a government employee. The problems with this assertion are discussed more fully below. *See* section III *infra*.

SUMMARY OF THE ARGUMENT

1. Should cases be decided differently under §101.106(e) and §101.106(f)?

The express purpose of §101.106 of the Tort Claims Act is to secure the expedient dismissal of individual government employees when the proper defendant is their government employer. One way the statute achieves that purpose is to include an "election of remedies" provision, which requires plaintiffs to choose between suing an employee in his individual capacity or in his official capacity. This Court has already held that, whenever an employee is sued for acts committed in the course and scope of his employment, that claim is effectively a claim against the government employer, regardless of whether the party named in the lawsuit is the employee or the government employer. The question in this case is whether service on that employee affects service on his employer.

To accomplish its express purpose, §101.106 provides that either the employee or the employer can move to dismiss the employee so that the lawsuit properly proceeds against the government employer. Section 101.106 has no deadline for either the employee or the employer to seek dismissal of the employee. There is nothing, then, other than decisions from this Court, to prevent either the employee or the employer from waiting

until after the statute of limitations expires to identify the government as the proper defendant.

In the case of a motion to dismiss filed by the **employee** under **§101.106(f)**, this Court has already held that a government employer cannot rely on a statute of limitations defense if the employee delays filing a motion to dismiss until after limitations expires. *Bailey*, 332 S.W.3d 395. This case differs from *Bailey*, in that, here, the government employee never filed a motion to dismiss under §101.106(f) at all; instead, the **government employer** filed a motion to dismiss under **§101.106(e)**.

Although this Court and the court of appeals found that distinction to be significant, the exact same legislative purpose and public policies that were safeguarded in *Bailey* are at issue in this case. The outcome should not change just because this time it was not the government employee, but the government **employer** who delayed filing a motion to dismiss under **§101.106(e)** until after limitations ran, in order to argue that suit had not been timely brought. This Court should reverse the granting of the plea to the jurisdiction because *Bailey* and the express purposes of §101.106(e) require it.

2. <u>Is the government entitled to separate service if its employee has been effectively served?</u>

As this Court noted, there is a separate legal issue that could also safeguard the purposes behind §101.106. Specifically, whether the government employer needs to be served at all, if the statutory prerequisites are met for bringing suit against the government employee for acts committed within the course and scope of his government employment? In other words, did Tanner need to serve the University at all, if she effectively served its employee, Scott? The only way to answer that legal question—while also preventing the government employer from manipulating the statute to escape lawsuits for acts that fall squarely within the scope of the TTCA's waiver of immunity—is to conclude that additional service on the employer is unnecessary.

That is particularly true when the employee, Scott, was represented by the same individual who represented the University during this entire process. There can be no plausible argument that the University needed some additional service beyond the service on Scott, when Scott delivered the lawsuit to the University's attorney in the Texas Attorney General's office. The same attorney who would ultimately assert the statute of

limitations defense for the University not only answered this lawsuit on behalf of Scott, and confirmed that Scott was a University employee, but even invoked statutory protections of the Tort Claims Act, which were applicable only to a government entity.

Finally, if timely service on Scott was the equivalent of timely service on his government employer, the only remaining issue is whether service on Scott was, in fact, timely. The University did not appeal that issue, and the Court of Appeals did not reach that issue on remand. Tanner established a fact question on whether she exercised diligence because she acted like a person of ordinary prudence when she followed the procedures outlined in §101.106 and the recommendations of this Court, by waiting to "bring suit" against Scott until it was disputed whether he was acting in the course and scope of his government employment.

ARGUMENTS AND AUTHORITIES

I. Standard of Review

Statutory interpretation is a question of law to be reviewed *de novo*. *Worsdale v. City of Killeen*, 578 S.W.3d 57, 66 (Tex. 2019). When a plea to the jurisdiction raises a fact issue, like diligence of service, the Court also reviews that issue *de novo*, similar to the review it would apply to a motion for

summary judgment. *City of Dripping Springs v. Lazy W Conservation Dist.*, No. 03-22-00296-CV, 2024 WL 2787270, at *4 (Tex. App.—Austin May 31, 2024, pet. denied).

II. The object sought to be obtained by §101.106 is to ensure the expedient dismissal of government employees when appropriate, not to provide the government with a tool to avoid liability for conduct for which the Legislature has otherwise waived immunity.

When construing a statute, the Court's "'goal is to ascertain the Legislature's intent." *Tanner*, 722 S.W.3d at 162 (citing *Texas Adjutant Gen.'s Office v. Ngakoue*, 408 S.W.3d 350, 354-55 (Tex. 2013)). To ascertain that intent, the court should consider the plain language of the statute, along with "the 'object sought to be obtained' by the statute and the 'consequences of a particular construction.'" *Id*. (quoting TEX. GOV'T CODE § 311.023(1), (5)).

The statute at issue here is the Tort Claims Act (which waives government immunity under certain conditions), and specifically §101.106 of that Act, which is titled "Election of Remedies." Section 101.106 requires a plaintiff to choose between suing a government employee individually or suing his government employer for acts he committed within the course and scope of his employment. This Court has articulated the legislative policy and purpose behind §101.106, and courts of appeals, including the lower

court in this case, consistently describe both what that policy is and how to achieve it:

> Thus, when the suit arises from an employee's conduct that was within the scope of employment and could be brought against the government under the Tort Claims Act, we must favor construing the meaning of Section 101.106's various provisions **in the way "that most clearly leads to the early dismissal of a suit against an employee**."

Tanner, 722 S.W.3d at 163 (emphasis added) (quoting *Ngakoue*, 408 S.W.3d at 355). As this Court further explained, "one of the primary purposes of both the TTCA generally and section 101.106 in particular [is] to protect governmental employees acting in the scope of employment." *Ngakoue*, 408 S.W.3d at 357. That purpose is accomplished when a court "favors the expedient dismissal of governmental employees when suit should have been brought against the government." *Id*. at 355. The TTCA "encourages, and in effect mandates, plaintiffs to pursue lawsuits against governmental units rather than their employees when the suit is based on the employee's conduct within the scope of employment." *Id*. at 352.[4]

[4] Interestingly, neither the University, the Third Court of Appeals, nor this Court in its initial opinion discussed the effect that the election of remedies had in determining who Tanner sued and when. The only reference to the election of remedies at all is in the University's 4/11/25 Supplemental Brief at 11 ("First, no governmental defendant is *required* to file any motion under the election-of-remedies provisions of the TTCA; they simply have the option. *See* TEX. CIV. PRAC. REM. CODE §101.106.") (emphasis in original).

A. The policy is no different whether the dismissal is sought under §101.106(e) or §101.106(f).

This Court should strive to achieve that clearly articulated policy—regardless of whether a motion to dismiss a government employee is filed by the employee under section (f) or filed by the employer under section (e). Indeed, this Court has already held as much:

> The same purposes [of ensuring early dismissal of governmental employees when suit should have been brought against the government and reducing the expense and delay associated with alternative pleading] are served by subsection (e), which applies when suit is filed against both a governmental unit under the [Texas Tort Claims Act] and its employee.

Tanner, 722 S.W.3d at 164 (citing *Ngakoue,* 408 S.W.3d at 358).

Both §101.106(e) and §101.106(f) require the University to step into the shoes of its employee, rather than obtaining a dismissal of the case. Neither section was designed to allow the University to escape a lawsuit altogether if immunity has otherwise been waived.

The same express purpose of expedient dismissal of individual employees in favor of government defendants is achieved through alternative provisions in §101.106(e) and §101.106(f), depending on whether

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The significance of this election is discussed in section V, explaining why Tanner's actions were those of an ordinarily prudent person.

the plaintiff has sued only the employee or both the employee and the employer. Specifically, the protection afforded to government employees is achieved by requiring that, in order to proceed with her case, the plaintiff must either (1) substitute the State for the employee (under §101.106(f)) or (2) dismiss the employee and proceed solely against the employer (under §101.106(e)). But the University argues (and the court of appeals held) that Tanner should not be allowed to do either.

By focusing solely on the fact that section (f) references a "substitution" where section (e) does not, this Court and the Court of Appeals missed the real issue. The issue is not that the employer is required to appear in the lawsuit if the dismissal is sought under one section but not the other.

The issue of "substitution" is simply semantics. When an individual employee is dismissed under subsection (e), no substitution is necessary for the case to proceed against the employer because both the employer and the employee were named in the lawsuit, and the case remains viable against the employer even after the employee is dismissed. By contrast, section (f) provides for a formal substitution, by expressly giving the plaintiff permission to "file[] amended pleadings dismissing the employee *and* naming the governmental unit as defendant" within 30 days of the date the

employee requested his dismissal. TEX. CIV. PRAC. & REM. CODE §101.106(f) (emphasis added). But the only reason the employer needs to be "substituted" for the employee under section (f) is because the employee has been the only defendant in the case, and without the substitution, the plaintiff's case would terminate (like Tanner's did here). That is what happened in *Bailey* based on the employee's §101.106(f) motion to dismiss, and it is what should have happened here. Just like the Court held in *Bailey* with respect to §101.106(f), section (e), was also never intended to be a vehicle by which a plaintiff's case is dismissed *entirely*. Like §101.106(f), section (e) is only intended to ensure that the case proceeds against the real defendant—*i.e.*, the government.

If the government has been in the case "all along" in a section (f) case (where the employer was never named)then surely the employer has also been in the case "all along" where, like here, the plaintiff named the employer and the employer's attorney answered the lawsuit and invoked the provisions of the TTCA. The unacceptable consequence of the construction adopted by the court of appeals is to deprive §101.106(e) of the same authority which this Court gave to §101.106(f) in *Bailey*, and to allow

the University to get away with the exact behavior this Court refused to countenance in *Bailey*.

B. Tanner complied with the purpose of §101.106 when she sued the government employer rather than the employee.

When Tanner first served the System, she was exercising her election to sue the government employer, rather than the employee. It was only after the System revealed that Tanner had not actually brought suit against Scott's employer, that Tanner sued Scott individually, just in case Scott's after-hours use of the golf cart was not within the scope of his employment. 2 SCR 56. Although Scott's answer invoked the provisions of the TTCA generally, his attorney did not seek the automatic dismissal available to Scott under §101.106(f).

As the case proceeded, it became clear that Tanner's initial election was the correct one because Scott was acting in the course and scope of his employment. That meant that Tanner needed to formally substitute the University in the place of Scott—but the Attorney General refused to file the necessary §101.106(f) motion that would allow that substitution to happen. At that point, Tanner took the only step available to her to move the case forward. Although it remains to be seen whether this was even necessary,

Tanner served the University, forcing the same attorney in the Attorney General's office who had not sought Scott's dismissal under §101.106(f) to finally seek Scott's dismissal under §101.106(e). As the dissent noted on remand, the particular section used should not have had a dispositive effect on determining who was the proper party in the lawsuit. Rather, the §101.106(e) motion in this case (just like the §101.106(f) motion in *Bailey*) simply served to "confirm" that, because Scott was acting in the course and scope of his employment, the University was "liable for damages resulting from any qualifying conduct." *Tanner*, 722 S.W.3d at 168.

Scott was dismissed automatically upon the filing of the University's §101.106(e) motion. Although there was nothing "expedient" about seeking Scott's dismissal almost two years after answering on his behalf, the University's §101.106 (e) motion to dismiss would have ordinarily meant that the employee would be dismissed—*and the case would proceed against the employer*, the only remaining defendant in the case.

But when Tanner tried to affect that substitution, the University argued that no substitution was available—simply because the University had achieved Scott's dismissal under section (e) instead of section (f). The effect of the University's argument is to gut the purpose and function of the

statute. On appeal, the University's appellate is that it successfully twisted what was intended as a statutory protection for employees in §101.106 into a tool to allow the government to seek dismissal of a government employer and the entire lawsuit.

C. In contrast to the actions taken by Tanner, the University directly undermined the purpose of §101.106.

The University's interpretation of §101.106 flouts the purpose and policy underlying the Tort Claims Act, by allowing the University to escape liability even though immunity has otherwise been waived under the Act. To be clear, the University does not claim that it has immunity from Tanner's claims. Instead, the University seeks to avoid a determination on the merits of Tanner's claims solely by arguing that Tanner did not exercise diligence in serving Scott or the University.

To agree with the University would contradict not only this Court's precedent, but also the legislative intent behind §101.106. Although service on every employee is not service on every employer, in the context of claims against government employers under the Tort Claims Act for the official acts of their employees, the legislative intent of the Act can only be satisfied if effective service on the government employee is deemed to be service on the

employer. That is especially true in a case like this one, where the government employer had not only actual notice that its employee had been served, but where the employer also appeared in and managed the litigation, while refusing to utilize statutory procedures intended to protect its employee, in order to further the employer's own litigation strategy.

1. The object of the statute could have been obtained if the System had identified the University as Scott's employer.

When Tanner initially sued the System, the most efficient way to achieve the statute's purposes of preserving resources and bringing suits against the government rather than an individual employee would have been for the System to simply tell Tanner that the University was Scott's employer. After all, the University and the System are represented by the same Attorney General.

But the Attorney General's office decided to play games under the rules, opting for two years' worth of delay tactics and engaging in the wholly unnecessary expenditure of state funds. Rather than taking the statutory steps to dismiss the government employee from the lawsuit, the Attorney General *instead* conceived a plan to misuse the rules in an effort to ensure that Tanner could not bring her claims at all. Instead of just identifying

Scott's employer as the proper defendant, the Attorney General wasted two years of the parties' time and the courts' resources as part of a devious effort to run the clock on limitations— in the hopes that the claims against Scott and the University would be dismissed under the Attorney General's misinterpretation of the terms within, and misunderstanding of the purpose underlying, §101.106. CR 37, 65, 69.

2. The object of the statute could have been obtained if Scott had filed a motion to dismiss under §101.106(f).

Once Scott was served, the next logical step, both to conserve resources and ensure the case proceeded against the proper defendant, was for Scott to identify his employer and file a motion to dismiss under §101.106(f).[5] However, this Court had already held in *Bailey* that the proper remedy in that situation would have been—even if the statute of limitations had already expired—to find that University had been in the suit as long as its employee had, and could not, therefore, rely on a statute of limitations

[5] The failure of Scott to seek the dismissal he was automatically entitled to supports the inference that the act of driving the golf cart to the nighttime football game was not an act within the course and scope of Scott's employment. Under those circumstances, Tanner acted as an ordinarily prudent person when she chose not to bring her suit against the University—for acts that Scott did not allege would subject the University to any liability.

defense to prevent the lawsuit from proceeding against it. So, the University advanced its strategy through a different vehicle.

Ms. Cubriel knew that Tanner could not simply substitute the University into the case unless and until Scott filed a §101.106(f) motion. Accordingly, even though the Attorney General had answered the lawsuit on Scott's behalf, invoking the protections available to a government employee under the TTCA, the same attorney who represented the University refused to engage the protections of §101.106(f) and seek Scott's expedient dismissal. (This had the benefit of avoiding the outcome in *Bailey*.)

Thus, the government's strategy was revealed: just let the lawsuit against a government employee sit until Tanner gave up or found a different way to move the case forward. On remand, the court of appeals unfortunately condoned this strategy when it agreed with the University's unabashed admission that, since no one was "required" to seek Scott's dismissal, the government was free to simply do nothing. *See* 04/11/25 App'ee Supp. Brief at 5-6, 11 (the University, "Scott's actual employer—had no obligation to file an (e) motion to dismiss Scott . . . . Nor is there any obligation for an employee to file a motion under subsection (f)."); *Tanner*, 722 S.W.3d at 166. In other words, the court of appeals approved of the

Attorney General's improper gamesmanship under the rules. Of course, this court-endorsed "do nothing" strategy had the added advantage of strengthening the government's eventual argument that Tanner waited too long to have her efforts classified as "diligent".

As explained above, when Scott failed to seek his dismissal, the only other action available to Tanner was to serve the University. And that is when Ms. Cubriel finally sought Scott's dismissal, albeit under §101.106(e). Ms. Cubriel accompanied the §101.106(e) motion to dismiss with a Plea to the Jurisdiction arguing that Tanner's claims were barred by limitations. This was the culmination of the original strategy that the employer who filed a §101.106(e) motion could be unhampered by the consequences which *Bailey* had previously levied on an employer whose substitution was affected through a §101.106(f) motion. The employer in *Bailey* was denied the ability to rely on the statute of limitations based on the length of time it took to officially bring the government employer into the case, but Ms. Cubriel apparently believed she had found a way around that result.

Both this Court and the court of appeals signed off on the strategy. Both courts found a distinction between the §101.106(f) procedure at issue in *Bailey* and the §101.106(e) procedure the University used in this case.

However, to give effect to the Legislature's intent, whether a motion to dismiss is filed pursuant to section (e) or section (f) must be considered a distinction without a meaningful difference. This Court should hold that neither §101.106(e) nor §101.106(f) can be intentionally manipulated by the government to thwart the intended purpose of §101.106—*i.e.*, that claims under the Tort Claims Act proceed efficiently against the proper defendant.

III. Timely service on a government employee in a Tort Claims Act case is sufficient to establish jurisdiction over his governmental employer.

The TTCA is not a shield to protect the University from having to defend against alleged negligence for which immunity has been waived. To the contrary, §101.106 is specifically designed to make sure that it is the University, rather than its individual employee, who appears and defends against allegations which fall squarely within the scope of the Act.

A. According to the terms of, and policy behind, the Tort Claims Act, the University was always the real party in interest.

Even though Scott was served with citation before the University was, the University had been in the case "all along," ever since Scott was served—just like the government employer in *Bailey*. Well before *Bailey*, this Court held that "a suit against an employee in his official capacity is *not* a suit

against the employee; it is, in all but name only, a suit against the governmental unit . . . such a suit . . . is, *in all respects other than name*, a suit against the entity." *Ngakoue*, 408 S.W.3d at 356-57 (emphasis in original); *see also Garza v. Harrison*, 574 S.W.3d 389, 399 (Tex. 2019) ("official-capacity suit against a public employee is merely another way of pleading an action against the governmental employer"); *Alexander v. Walker*, 435 S.W.3d 789, 791 (Tex. 2014) (because such a suit "actually seeks to impose liability against the governmental unit rather than on the individual specifically named, . . . [it] is not a suit against the employee; it is, in all but name only, a suit against the governmental unit'"); *Franka v. Velasquez*, 332 S.W.3d 367, 383 (Tex. 2011) (same).

In other words, this Court has made it abundantly clear that, when a plaintiff sues both the University and the University's employee for a claim that could have been brought under the TTCA (and the University does not dispute that Tanner's claims could have been), the real party is the University, and the employee is to be dismissed. To repeat: that provision is not meant to protect the State; rather, it protects the individual government employee. *See e.g., Fort Worth Transp. Auth. v. Rodriguez*, 547 S.W.3d 830, 846 (Tex. 2018) (Section §101.106 "was incorporated into the TTCA to prevent

plaintiffs from circumventing the TTCA's damages cap by suing government employees, who were, at that time [it was enacted] not protected."). This was never a suit against Scott, therefore, and, according to this Court's longstanding precedent, the University has, in all respects but name only, been in the case as long as Scott has.

B. In *Bailey*, this Court refused to allow the government to rely on the timing of a motion to dismiss to form the basis of its statute of limitations defense. In doing so, the court safeguarded the purpose of §101.106 and ensured that the case proceeded against the proper defendant. It should do the same thing in this case.

At its core, *Bailey* simply prevents a government employer from relying on the timing of the employee's dismissal as the basis for the employer's statute of limitations defense. The first time this Court issued an opinion in this case, it "decline[d] to resolve in the first instance whether or how the principles of *Bailey* affect this case," leaving that issue for the court of appeals to resolve. *Tanner*, 689 S.W.3d at 303. On remand, the court of appeals decided that the policies espoused in *Bailey* were inapplicable simply because *Bailey* addressed the government's "substitution" under §101.106(f), where the government had not previously been a defendant. But the court of appeals reasoned that the government could not be

"substituted" into this case under §101.106(e), like it was substituted into the case under §101.106(f) in *Bailey*, because Tanner had already named the University as a defendant. But that is a distinction without a relevant difference, and certainly should not be the basis for eschewing an express policy articulated by both the Legislature and this Court—that the government defendant should step into the shoes of its employee when appropriate. In truth, the *Bailey* case is similar on all the issues that really matter, and the University is even less entitled to rely on a statute of limitations defense in this case than the defendant in *Bailey* (who was not allowed to rely on that defense).

1. The important part of the holding in *Bailey* is the policy that was upheld, and it is no less important to uphold that policy in this case.

This Court granted review in *Bailey* precisely because it "had great difficulty in accepting the notion that the Legislature intended the result" that a government employer could "effectively bar the plaintiff's claims" by filing a motion to dismiss after the limitations period, even if the plaintiff had done everything it could do to comply with §101.106. *Bailey*, 332 S.W.3d at 399 (citing *Bailey*, 261 S.W.3d 147, 153 (Tex. App.—San Antonio 2008)). At that time, this Court concluded that a government defendant should not "be

rewarded for dilatory conduct." *Id.*

The University concedes that the holding of *Bailey* is that a plaintiff should not be penalized because a government employee waited until after limitations had run to file a §101.106(f) motion. App'ee 4/11/25 Supplemental Brief 8-9 ("substitution under §101.106(f) cannot operate to bar claims against a government unit that would otherwise be permissible"). Tanner agrees.

But the purpose of §101.106 does not change depending on whether an **employee** files a §101.106**(f)** motion or the **employer** files a §101.106**(e)** motion. Rather, *Bailey*'s holding should apply with equal force, regardless of the section used or the timing of either the employee's or the employer's motion. In other words, just like the government employer in *Bailey* was prevented from manipulating §101.106(f) to time bar the plaintiff's claim, the University should not be allowed to rely on when (or whether) Scott filed a §101.106(f) motion, or when the University filed a §101.106(e) motion

The effect of *Bailey*'s holding should be to prevent the manipulation of the entire statute, not just the manipulation of §101.106(f). The Court should not "reward dilatory conduct" which thwarts the express purpose of the statute under either section.

2. In both *Bailey* and this case, the governmental entities were in the lawsuit "all along"—solely by virtue of the plain language of the statute.

In *Bailey*, the employer, UTHSCA, also tried to ignore the fact that the individual employee had been served, in order to rely on the plaintiff's failure to timely effect service on the employer itself. *Bailey*, 332 S.W.3d at 401-02. This Court acknowledged *Bailey's* conclusion that under §101.106(f), "a governmental employer may be substituted for the employee under subsection (f) after limitations has run because there is 'no change in the real party in interest.'" *Ngakoue*, 408 S.W.3d at 357 (citing *Bailey,* 332 S.W.3d. at 401-02).

The Court concluded that "under section 101.106(f)," the suit against the employee "was, in all respects other than name, a suit against the employer. *Bailey*, 332 S.W.3d at 401-02. To put it another way, the government employer was the proper defendant because the Legislature, through §101.106 says that it was, regardless of when and whether the employee chose to file a §101.106(f) motion.

If the provisions of §101.106 mean that the employer in *Bailey*, despite never having been named or sued, was actually in the case "all along," then it is surely even easier to conclude in the present case that the University—

as a named party—has also been in this case "all along." As explained herein, the University has not only been present, but its attorneys answered the lawsuit for Scott and invoked some of the protections of the TTCA, thereby directing the strategy of the litigation. Just like the employer in *Bailey*, the University should not be allowed to use its alleged "absence" from the case as the basis for a statute of limitations defense, in direct contravention of the policy requiring the State to stand in the shoes of its employees for acts that fall within the scope of the TTCA.

3. The question of "knowledge" does not preclude the application of *Bailey* here.

Another basis on which this Court and the court of appeals distinguished *Bailey* was by arguing that the Baileys, unlike Tanner, did not know that the actor was, in fact, a government employee. But the Baileys had at least as much knowledge available to them as Tanner, because the doctor performed the surgery at the *University of Texas Health Science Center* at San Antonio, who he later revealed to be his employer.

More importantly, *Bailey* expressly held that the plaintiff's knowledge is irrelevant to whether the suit was, in effect, a suit against the government employer. *Bailey*, 332 S.W.3d at 401. The Court explicitly held that "[u]nder

the statute, *it matters not* that the Baileys may not have been aware of Sanders' government employment when they sued him; only the *fact* of his employment, *eventually established*, is important. . . . [T]he statute does not require a motion for a government employee to be considered to have been sued in his official capacity." *Id*. (emphasis added).

Finally, even if Tanner really did know something that the Baileys did not, she still did not have the kind of knowledge that could make a difference under the statute. The "knowledge" that is required for a plaintiff to elect her remedies under §101.106 is not just the knowledge that a defendant was a government employee. Rather, the only knowledge that could potentially make a difference is the knowledge of whether the employee was acting in the course and scope of his employment (such that the government employer was the proper defendant).

In this case, it was not immediately known whether Scott was acting in the scope of his employment when he injured Tanner while driving a golf cart across campus at night to go to a football game. Accordingly, and just like the Baileys, Tanner did **not** start the lawsuit with the kind of knowledge necessary to make a proper election of remedies.

When the System alleged in discovery that it was not Tanner's

employer, it did not tell her who his employer was, or even suggest that Scott's employer would be vicariously liable for Scott's negligence. When Scott was served and answered, he likewise did not seek the automatic dismissal that was available to him as a government employee acting in the course and scope of his government employment. It was not until Tanner served the University, because she remained concerned that Scott's employer and not Scott was the proper defendant (even though no one had filed a motion to dismiss under either §101.106(e) or (f)) , that the University finally judicially admitted that it was the party responsible for Scott's negligence. *Tanner*, 722 S.W.3d at 167 (Crump, J., dissenting). At that time, Tanner lacked the same kind of knowledge that the courts found lacking in *Bailey*. Tanner's initial knowledge that the University might someday be the defendant she elected to pursue is not a valid basis for refusing to apply *Bailey*'s holding in this case.

4. The issue of "substitution" discussed in §101.106(f) does not preclude the application of *Bailey* here.

The lower court's majority opinion made much of the fact that the University could not be "substituted" into the case because it filed its motion

under section (e), and section (e) does not contain any language regarding substitution. *Tanner*, 722 S.W.3d at 165-67.

This is a distinction with a practical, but not a substantive, difference. Practically speaking, no substitution is required when the employee is dismissed under (e) because the plaintiff has already sued both the employee and the employer. When the employee is dismissed, the lawsuit simply proceeds against the remaining employer-defendant. However, when the plaintiff has sued only the employee, and the employee is dismissed under section (f), then the substitution of the employer is required in order for the case to proceed against anyone.

This was the crux of the dissenting opinion, which correctly argued that no substitution of the University was required—not only because it had been in the case "all along", but also because the University "voluntarily substituted itself for Scott by filing a §101.106(e) motion to dismiss" and "judicially admitted" and "agreed" that it was vicariously liable for Scott's acts. *Tanner*, 722 S.W.3d at 167 (Crump, J., dissenting).

5. The issue of "control" does not prevent the application of *Bailey* here.

The court of appeals also declined to apply *Bailey* to section (f), by holding that section (f) "gives control of the timing of the motion to dismiss to the employee," whereas in section (e) "the employer controls the filing of the motion to dismiss." *Tanner*, 722 S.W.3d at 166-67. In truth, the person who actually "controls" whether a motion to dismiss will be filed under section (e) or section (f) **is the plaintiff**, who chooses whether to sue the employee only (implicating section (f)) or both the employee and the employer (implicating section (e)).

To the extent the question of "control" is even relevant to the analysis, if anything, it weighs in favor of refusing to allow the University to rely on a statute of limitations defense. In *Bailey*, this Court took away the **employer'**s ability to rely on that defense—even though it was not the employer who had lain behind the log, but the **employee** who waited until after limitations expired to identify his government employer and seek dismissal. So much more so should the University be prevented from

relying on a statute of limitations defense when the University itself controlled the timing of filing the §101.106(e) motion to dismiss.[6]

IV. Service on Scott is sufficient to acquire jurisdiction over the University because, when the proper defendant has timely notice of the lawsuit, the purpose behind service of citation is accomplished.

Tanner does not propose that service of citation on every employee is always sufficient to affect service on every employer. But, recognizing service on Scott as service on his government employer advances the State's well-settled policy of ensuring that claims which can proceed under the TTCA are not brought against individual employees. This also comports with the realities of litigation against a government employer, the common law, and with the requirements of due process.

A. Allowing service to be effective on the employer achieves the purpose of the Tort Claims Act by recognizing the realities of bringing a lawsuit against a government employee.

As this Court made clear in *Bailey*, the reality of bringing a claim

[6] By taking the limitations defense away from the employer, the *Bailey* holding necessarily implies that, even though the employer had not been named in the lawsuit, the employer was still somehow involved or engaged in the timing of the employee filing the motion to dismiss. Why else would the employer be penalized solely for actions of an employee which it did not control, in a lawsuit it had no idea existed? So, too, in this case, every inference leads to the conclusion that the attorney retained by the government to appear in the lawsuit on behalf of both the University and Scott was also involved in determining whether and when Scott himself sought dismissal as well as whether and when the University made an appearance and sought Scott's dismissal.

against a government employee for acts committed in the scope of his employment is that a plaintiff has, in fact, brought a claim against the government—whether or not the plaintiff even knew that the defendant was a government employee. *See Bailey*, 332 S.W.3d at 401 ("Under the statute, it matters not that the Baileys may not have been aware of Sanders' government employment when they sued him; only the fact of his employment, eventually established, is important.").

Another reality of suing a government employee is that, as it happened in this case, it must be expected that, when a government employee is sued for acts committed within the scope of his employment, that employee will turn to his government employer for assistance and even representation. (If the employee is sued for acts outside the scope of his employment, then his employer is not vicariously liable for his actions, and the TTCA would not be invoked.) That is what happened here.

When Scott was served, he retained the University's lawyer at the Attorney General's office to represent him in the case. When that attorney, Lisa Cubriel, answered on behalf of Scott, she even asserted the applicability of the Texas Tort Claims Act because, according to the answer she filed on behalf of Scott, "at the time of the incident" Scott "was an employee of Texas

State University." SCR 65. According to Ms. Cubriel, "Defendant Scott, expressly reserves the right to fully assert all limitations, exemption and exclusions provided by the Texas Tort Claims Act." SCR 65.

Of course, the TTCA has no application whatsoever—unless Ms. Cubriel understood that Scott was being sued for acts in his official capacity. And this Court has already determined that any suit against a government employee for official acts is "in all but name only, a suit against the government." *Ngakoue*, 408 S.W.3d at 356-57.

When Ms. Cubriel answered the lawsuit and asserted defenses that only the University could assert, she appeared in the lawsuit on behalf of the University (making formal citation unnecessary to provide notice to the government entity). *See* TEX. R. CIV. P. 121 ("An answer shall constitute an appearance of the defendant so as to dispense with the necessity for the issuance or service of citation upon him."). Service on Scott, therefore, must be deemed effective service on the University under these facts—*i.e.*, when the University's lawyer answers the lawsuit and asserts immunity which is only available if the University itself is the defendant.

B. The purpose of formally serving citation is to provide reasonably effective notice.

So far, this Court, the Court of Appeals, and the University have all summarily dismissed the arguments made by Tanner with respect to common representation and actual notice. But those issues are critical to the due process analysis that informs whether or not the University was brought into the lawsuit by the act of serving citation on Scott. Actual notice can satisfy the statutory prerequisite of "notice" even though the actual notice does not meet the formal notice requirements. So, too, should the statutory prerequisite of service be satisfied as long as the policy behind service is accomplished, even if the formal service requirements are not satisfied.

The purpose of requiring formal citation is "to give the court jurisdiction over the parties and to provide notice to the defendant that he has been sued by a particular party, asserting a particular claim, in order to satisfy due process and allow the defendant the opportunity to appear and defend the action." *Montgomery v. Hitchcock*, No. 03-14-00643-CV, 2016 WL 3068219, at *1 (Tex. App.—Austin May 25, 2016, no pet.) (mem. op) (citing *Sgitcovich v. Sgitcovich*, 241 S.W.2d 142, 146 (Tex. 1951)); *City of Tyler v. Beck*, 196 S.W.3d 784, 787 (Tex. 2006) ("Generally, the purpose of citation is to give

the court jurisdiction over the parties and to provide notice to the defendant."). To accomplish that purpose, the manner for effecting service is required to be "reasonably effective to give the defendant notice of the suit." TEX. R. CIV. P. 106.

1. Common representation is a factor in determining whether a defendant has "reasonably effective notice" of the litigation.

Neither this Court nor the court of appeals cited any authority for the principle that "common representation alone does not establish service." *Tanne*r, 722 S.W.3d at 167, n.5 (citing *Tanne*r, 689 S.W.3d at 304). In fact, the only case this Court cited for that proposition involved the strict service requirements which must be met in the context of taking a default judgment. *Tanner*, 689 S.W.3d at 304 (citing *Wilson v. Dunn*, 800 S.W.2d 833, 837 (Tex. 1990)). But the question here is whether the University was given reasonably effective notice. Neither court expressly claimed that nothing besides formal service could meet the statutory prerequisite of bringing suit within limitations.

To be clear, this is not a case where the plaintiff is trying to take advantage of the fact that the "right hand" and the "left hand" of some big law firm or government entity happened to separately receive copies of the

same lawsuit, and proceeded as though each had no knowledge of what the other was doing. In this case, the same individual controlled this entire strategy. When the Attorney General received the lawsuit which had been served on Scott, the University was also a named party (for whom Ms. Cubriel would ultimately answer). When Ms. Cubriel answered the lawsuit on behalf of Scott, she asserted the applicability of the TTCA and raised the affirmative defense of statute of limitations, based on the length of time that had passed between the incident involving a University employee and service on Scott on September 18, 2018. 2SCR 65. The statute of limitations argument was denied. CR 53-54. On June 20, 2020, Ms. Cubriel answered this same lawsuit, this time on behalf of the University, and made the same statute of limitations argument (with the added twist that a statutory prerequisite had not been satisfied). CR 11.

It stretches neither the imagination nor due process to accept the inference that this representation of both the University and the employee (in his capacity as a University employee) by the exact same attorney for the State is not simply "common" representation, but "concerted" representation designed to achieve the government's dismissal, in direct

contravention of the policy requiring the government employer to participate in the lawsuit.

2. Common representation can be an equitable factor that deprives the defendant of reliance on a statute of limitations defense.

The realities of this case make it similar to a case of misnomer—where a party is precluded from relying on a statute of limitations defense because it had been put on notice that it was the "intended defendant." In the case of misnomer, "limitations is tolled and a subsequent amendment of the petition relates back to the date of the original petition." *Levinson Alcoser Associates, L.P. v. El Pistolon II, Ltd.*, 670 S.W.3d 622, 628 (Tex. 2023) (citing *Enserch Corp. v. Parker*, 794 S.W.2d 2, 4–5 (Tex. 1990)). "Courts are flexible in these cases because the party intended to be sued has been served and put on notice that it is the intended defendant." *In re Greater Houston Orthopaedic Specialists, Inc.*, 295 S.W.3d 323, 326 (Tex. 2009) (internal citations omitted).

Since 1975, the *Hilland* rule has provided that a defendant who has been misidentified by a plaintiff may not rely on a statute of limitations defense if it has suffered no prejudice. *Continental Southern Lines, Inc. v. Hilland*, 528 S.W.2d 828 (Tex. 1975); *see also Torres v. Johnson*, 91 S.W.3d 905, 910 (Tex. App.—Fort Worth 2002, no pet.) (citing cases) (service on "true

defendant" is not "a prerequisite to avoiding the limitations bar where the true defendant was not prejudiced by the initial misidentification"). Critically, this Court's reasoning in *Hilland* was that the defendant could not rely on a failure of service argument because "it had as much opportunity to prepare a defense ***as if it had been named a defendant in the original petition."*** *Id.* at 831 (emphasis added). Of course, that is the exact same reasoning this Court used for refusing to allow the government employer in *Bailey* "who had been in the case all along," to rely on a statute of limitations defense.

In determining whether equitable tolling is applicable (or in contrast, whether the defendant has received reasonably effective notice of the lawsuit), the courts often consider whether, as in this case, the defendant who was initially served and the other defendant who later tries to rely on a limitations defense were actually represented by the same attorney. *See e.g. Enserch*, 794 S.W.2d at 6 (rejecting limitations argument when same legal department represented both defendants and the senior attorney in that litigation department "was responsible for litigation involving both corporate entities"); *I.D. Tech., LLC v. Paul Leibinger Numbering, Mach. Ltd. P'ship*, No. 3:12-CV-2646-B, 2013 WL 105361, at *3 (N.D. Tex. Jan. 8, 2013)

(fact that same counsel represented both entities was a factor in finding misnomer and lack of prejudice); *Myers v. Dollar Gen. Corp.*, No. 5:10-CV-151, 2011 WL 13323760, at *6 (E.D. Tex. Nov. 14, 2011) (denying summary judgment on limitations because defendant ordered plaintiff's medical records and the same attorney represented both defendants); *Ayala v. S. W. Properties, L.P.*, No. 05-99-01024-CV, 2000 WL 1195700, at *3 (Tex. App.—Dallas Aug. 23, 2000, no pet.) (inter-relatedness of corporations and individuals who had actual knowledge of injury created fact question on whether defendant was prejudiced); *Elrod v. Medcare Mgmt., Inc.*, No. 05-96-00659-CV, 1998 WL 334429, at *5 (Tex. App.—Dallas June 25, 1998, no pet.) (rejecting limitations argument because movant "knew it was the intended defendant" and "the same attorney answered on behalf of both defendants").

The doctrine of misnomer is also applicable in cases where, like here and *Bailey*, the plaintiff misstates merely the capacity in which it has sued the defendant. For example, in *Chilkewitz v. Hyson*, 22 S.W.3d 825, 830 (Tex. 1999), this Court held that a lawsuit which described the defendant as an individual doctor "was effective to commence suit against the Association doing business under the name of" that doctor. The only caveat was that,

"of course, at some point before judgment, the plaintiff must amend the petition to add the correct legal name of the actual defendant." *Id.* That subsequent amendment is akin to the substitution that must take place under §101.106(f) when a government employer, who was effectively sued when its employee was sued, must be substituted as the proper defendant. [7]

3. Actual notice can establish that a defendant has received reasonably effective notice of the litigation.

This Court and the lower court also held that the notice analogy raised by Tanner was inapposite. But Tanner did not rely solely on the *fact* of actual notice; she simply made an analogy to the arguments and analysis surrounding notice *as a statutory prerequisite*. By way of example, one area in which Texas courts have examined what it takes for a state actor to receive reasonably effective notice of a claim or lawsuit is in the context of providing statutory notice. That analogy is particularly relevant here, because when a government entity is entitled to "notice," that notice is also a statutory

[7] The *Bailey* court concluded that it did not need to apply the doctrine of misnomer because, under §101.106(f) the act of suing the government employee was the same as suing the government employer. *Bailey*, 332 S.W.3d at 401 ("The Baileys do not need the doctrine. In effect, when the Baileys sued Sanders, they sued the Center."). If the Court concludes that there is a meaningful distinction from *Bailey* because this case involved §101.106(e), then the doctrine of misnomer and equitable tolling should be applicable.

prerequisite to suit. If actual notice is sufficient to satisfy the statutory prerequisite of a notice requirement, then actual notice (not only to the entity but also to its individual attorney) should be sufficient to satisfy the statutory prerequisite of "bringing suit" within limitations.

Addressing the statutory prerequisite of notice in *Worsdale v. City of Killeen*, 578 S.W.3d 57, 66, 68 (Tex. 2019), this Court held that, in order to satisfy the statutory prerequisite, "[t]he critical inquiry is the governmental unit's actual anticipation of an alleged claim rather than subjective confirmation of its actual liability." In this case, there can really be no question that the University anticipated a claim against it not only when it received an incident report the night of the incident, but also, for the purposes of this argument, when it received service of the lawsuit against Scott, and answered the lawsuit on behalf of Scott, admitting that Scott was acting in the course and scope of his employment, and invoking the protections of the TTCA.

Under those circumstances, the University has been in this lawsuit as long as Scott has. To hold otherwise would run counter not only to the facts of this case, but to the express judicial and legislative purposes behind the TTCA in general, and in particular, §101.106 and its goal to ensure the

expedient dismissal of government employees when a claim could and should have been brought against the government. Making service on an employee effective as service on the employer, when the government answers the lawsuit on behalf of the employee, also advances the purpose of guarding against unfair surprise or prejudice, ensuring that service is performed in such a way that it is "reasonably effective to give notice of suit." *See* TEX. R. CIV. P. 106(b)(2).

Both the policies governing effective service (to guard against surprise and ensure due process) and the express purpose of the TTCA (to impose liability on state actors rather than their individual employees) are advanced by requiring the University to step into the shoes of its employee rather than improperly manipulating §101.106 into a vehicle to secure dismissal of the entire lawsuit and avoid any determination on the merits.

V. Tanner acted as a reasonably prudent person by serving Scott when she did.

Whether service on Scott was timely requires more than just counting the days on the calendar between the time the lawsuit was filed and the time citation was served on Scott. It requires consideration of the existing circumstances and what a reasonably prudent person would have done in

those circumstances. Here, there is at least a fact question that Tanner did exactly what a reasonably prudent person would have done.

A. The exercise of diligence in service of process requires an examination of whether Tanner acted as an "ordinarily prudent person" would act in the "same or similar circumstances."

"In assessing diligence, the relevant inquiry is whether the plaintiff acted as an ordinarily prudent person would have acted under the same or similar circumstances and was diligent up until the time the defendant was served." *Proulx v. Wells*, 235 S.W.3d 213, 216 (Tex. 2007). Or, as this Court put it, "diligence means truly trying to achieve service—as if one *wanted* to do it, not merely *had* to do it." *Tanner*, 689 S.W.3d at 299 (emphasis in original). In this case, Tanner actually went above and beyond anything §101.106 required on its face.

Once the plaintiff provides an explanation for any alleged delay by raising a material fact issue concerning the diligence of service efforts, the burden shifts back to the defendant to conclusively show why, as a matter of law, the explanation is insufficient. *Proulx,* 235 S.W.3d at 216; *Texas Comptroller of Pub. Accounts v. Landsfeld*, No. 2-07-266-CV, 2008 WL 623832, at *4 (Tex. App.—Fort Worth Mar. 6, 2008, no pet.) (mem. op.) (affirming

denial of plea to the jurisdiction because the defendant had "not conclusively shown that the explanations for the delays in question were insufficient as a matter of law").

In this case, Tanner explained how the election of remedies in §101.106 dictated her service efforts, and the University did not conclusively establish that Tanner failed to exercise diligence "in these circumstances."

B. The "prudent" course of action was to wait to sue the University until Tanner knew whether Scott was acting in the course and scope of his employment with the University.

The Court accepted the University's argument that "to 'bring suit' is a term of art reflecting the traditional requirements to satisfy a statute of limitations: filing the petition *and* achieving service of process." *Tanner*, 689 S.W.3d at 300 (emphasis in original). Thus, according to the court of appeals, Tanner did not "bring suit" against Scott or the University until she served them with the citation.

That is an important distinction in a claim under the TTCA, because Section §101.106 not only ensures that the government will step into the shoes of its employee when a case could have been brought under the TTCA, but it also forces plaintiffs to make an election between bringing suit *either* against the government (for actions of employees acting in the scope of their

employment) *or* against an individual (who is not acting within the scope of his employment). *See* TEX. CIV. PRAC. & REM CODE §101.106(a).

This Court has acknowledged that, given the preclusive effect of that election, the "prudent choice" when a plaintiff "possesse[s] insufficient information to know whether [the employee] is acting within the scope of his employment" is to sue the employee rather than the government, and "await a factual resolution of that question." *Molina v. Alvarado*, 463 S.W.3d 867, 871 (Tex. 2015).

The seriousness of getting that choice wrong was illustrated in *Hernandez*, when the plaintiff's case was dismissed because he sued the employer before he was able to determine whether the individual doctor "was liable individually or liable only as a government actor." *Hernandez v. Kanlic*, 583 S.W.3d 878, 888–89 (Tex. App.—El Paso 2019, pet. denied). The San Antonio Court of Appeals likewise held that "if a plaintiff is not in the position of knowing whether the employee was acting within the scope of employment at the time suit is filed, 'the prudent choice would have been to sue [the employee], and await a factual resolution of that question.'" *Donohue v. Dominguez*, 486 S.W.3d 50, 57 (Tex. App.—San Antonio 2016, pet. denied) (citing *Molina*, 463 S.W.3d at 871) (suit dismissed because plaintiff

did not substitute government unit within 30 days of the date the individual filed a motion to dismiss).

Tanner, then, did exactly what this Court recommends. After learning that she had not sued Scott's employer when she sued the System, Tanner served citation on Scott, so she could await a factual resolution to whether Scott's driving the golf cart at night to a football game was within the scope of his employment. That service was timely, and (as discussed below) delayed only by the System's delay in revealing that it was not Scott's employer. That decision was also shown to be prudent, because, when Tanner did bring Scott into the lawsuit, Scott did not allege that he was acting in the scope of his employment (2 SCR 58), and did not seek dismissal under Section 101.106(f). All of this uncertainty about Scott's status gave Tanner no reason to serve the University or to try to substitute the University for Scott.

The decision of Scott's attorney not to invoke Section 101.106(f) when Tanner served Scott was either an effort to lead Tanner to believe that Scott was not acting with the course and scope of his employment (and Scott was therefore the proper defendant), or it was part of the University's elaborate scheme to systematically secure the dismissal of Tanner's claims against each

defendant. Either way, the Attorney General's inaction on behalf of Scott left Tanner in a precarious position. Tanner came to understand through discovery that Scott was acting in the scope of his employment, but (as the court recognized on remand), §101.106(e) provided no vehicle for substituting in the University as the proper defendant unless Tanner brought suit against both the employee and the employer. As suspected, when Tanner formally brought the University into the lawsuit, that finally forced the University to file a §101.106(e) motion to dismiss, and Tanner sought the substitution that should have been available to her under §101.106(f) when she first served Scott.

Tanner should not be penalized for doing exactly what the Court advised her to do, just because the University found a way to twist the statute designed to protect the government employee into a vehicle to protect itself and secure dismissal of the claims against it. That is especially true in the complete absence of any prejudice to the University, and because the University was served before Tanner was even required to bring the University into the case under Section §101.106(f).

The procedural maneuvering in this case certainly does not prevent the application of the policy outlined in *Bailey*, and in fact does much to

commend the application of that holding here. The University was not only present in this case "all along" but it was also acting behind the scenes all along. The University's attorney answered on behalf of Scott but did not invoke §101.106(f)'s protections for Scott, setting up the argument that, by the time §101.106(e) was finally applicable, it was too late to achieve its explicit purpose of substituting the University in Scott's place. On these facts, this Court should conclude that service on the employer relates back to the timely service on the employee.

C. The only "delay" between filing the lawsuit and serving Scott was caused by the University's attorney's effort to thwart the purpose of the Tort Claims Act and take advantage of the fact that Tanner was simply trying to comply with the policies incorporated into the Act.

Tanner is only required to explain her "diligence" if the University can establish that she "delayed" in serving Scott. But the only "delay" in this case was the one orchestrated by the University and the System.

Eschewing similar gamesmanship by the State, the court in *Landsfeld* held that the State had not shown, as a matter of law, that the plaintiff's explanations were insufficient. *Tex. Comptroller of Pub. Accounts v. Landsfeld*, No. 2-07-266-CV, 2008 WL 623832, at *4 (Tex. App.—Fort Worth Mar. 6, 2008, no pet.) (mem. op.). In *Landsfeld*, the plaintiff explained that his discussions

with the State had led him to believe that the State would be answering the lawsuit notwithstanding the State's later claims that the plaintiff failed to serve the proper party.

Likewise, in this case, Tanner has explained that what the University claims to be "delay" was simply Tanner's effort to comply with the TTCA and its policies, as articulated by this Court. This is not, therefore, one of the rare instances where Tanner's explanation failed to create a fact issue. The University certainly did not establish that Tanner was unreasonable as a matter of law.

Despite being the party with superior access to that information, the System waited almost two years, until it filed the brief in support of its plea to the jurisdiction on August 30, 2018, to aver that Scott was not its employee. 2 SCR 25. To be sure, the System's original answer filed on October 31, 2016, included a skeletal plea to the jurisdiction, but it was based solely on the fact that, as a government entity, the System was "entitled to immunity". 1 SCR 24. The System's plea to the jurisdiction did not address Scott's employment status or the scope of his employment. 1 SCR 24-26. The System then kept the focus of the case on its sovereign status (avoiding the issue of Scott's employment status) for another year by continuing to pursue its motion to

transfer venue instead of contesting jurisdiction (on any basis). The motion to transfer venue was not granted until January 6, 2017. CR 92, 94, 97, 100. 1 SCR 32.

After securing a venue transfer, the System finally pursued dismissal on jurisdictional grounds when it filed its brief in support of the plea to the jurisdiction on August 30, 2018. That was the first time the System challenged jurisdiction because it was not Scott's employer. **Eighteen days later**, Tanner requested citation on Scott on September 17, 2018.

As discussed above, because of Section 101.106(a)'s election requirement, Tanner had to choose at that time between completing the action of "bringing suit" against either Scott or the University by serving one of them with citation. Her decision to choose Scott was prudent. This is evidenced by the fact that, as late as October 11, 2018, when Scott answered the lawsuit, he did not assert that he was acting in the scope of his employment. He merely reserved his right to make that claim "if the facts demonstrated" it. 1 SCR 65.

Only after Scott's motion for summary judgment was denied on limitations did the University file a motion to dismiss under Section 101.106(e), finally confirming that Scott was acting in the scope of his

employment for the University when he injured Tanner. CR 11. That motion was properly granted and, having already been served with citation, the University was substituted in Scott's place.

Thus, Tanner acted consistently with the purpose and structure of the TTCA. First, Tanner brought suit against the System as Scott's employer. Next, Tanner prudently brought suit against the employee only when she discovered that she had not sued his employer, and that the course and scope issue was unresolved. At a minimum, Tanner created a fact question on what Scott (and later the University) characterized as "delay." The purported "delay" was simply a prudent response to the Attorney General's intentional strategy to subvert the policies of the TTCA, despite the fact that the proper government defendant was in this case "all along." That gamesmanship should not be rewarded by allowing the government employer to assert a statute of limitations defense to deprive the court of jurisdiction over claims that otherwise fall squarely within the scope of the TTCA.

CONCLUSION & PRAYER

As the University argued to this Court, a plaintiff does not "bring suit" against a defendant until it both files and timely serves its lawsuit. In this

case, consistent with the policies behind the TTCA, Tanner brought her lawsuit first against the System, who she believed to be Scott's employer.

When the System finally sought dismissal because it was not Scott's employer, Tanner had to choose between serving Scott or the University. Tanner made the prudent decision to serve Scott. Her service on Scott was timely because it was not delayed by any action on Tanner's part but merely by the State's strategy. Moreover, that service on Scott was effective to serve the University, because it brought the University into the lawsuit, and the University's attorney recognized the applicability of the TTCA and took control of the course of the litigation. When Scott failed to secure his dismissal on the common law basis of limitations, the University had itself substituted in his place, so it could make a stronger argument based on CPRC §311.034.

Throughout this process, the University twisted the purpose and procedure of the Tort Claims Act. It did so in order to secure a result which was in direct contravention of the policy behind the Act. On the facts of this case, the University is in no need of the protections afforded by the requirements for effective service of citation, because the University has been in the lawsuit as long as Scott has. What's more, the University used

its position to direct the lawsuit behind the scenes—to secure not the substitution, but the dismissal, of both individual and government defendants.

Under the facts of this case, service on Scott was effective to establish service on the University. There is a fact question whether service on Scott was timely, because Tanner acted as a reasonably prudent person in waiting to serve Scott until after the System denied that it was Scott's employer.

This is not a case of failure to serve the State and satisfy a statutory prerequisite for filing suit. This is a case of allegedly failing to serve the correct governmental entity. The State had full knowledge of this lawsuit all along and was effectively served with process. Tanner did everything she could to sue the proper party. If the State had not intentionally laid behind the log to assert a frivolous limitations claim, Tanner would have effectuated service on the proper party immediately. The assistant attorney general's actions here should not be condoned by this Court.

Accordingly, the Court of Appeals erred in affirming the University's plea to the jurisdiction. For these reasons, Petitioner Tanner requests that the Court reverse the order granting the plea to the jurisdiction and remand this case to the trial court for further proceedings in the case arising from the

injuries to Tanner suffered in 2014. Petitioner also requests all other relief in law or equity to which she may be justly entitled.

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this *Brief on the Merits* has been forwarded to the following counsel of record on May 12, 2026, pursuant to Texas Rule of Appellate Procedure 9.5(b).

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